

SENATE/HOUSE FILE _____
BY (PROPOSED DEPARTMENT OF
CORRECTIONS BILL)

A BILL FOR

1 An Act relating to sexual misconduct with offenders and
2 juveniles, and providing penalties.
3 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

1 Section 1. Section 709.16, subsections 1 and 3, Code 2026,
2 are amended to read as follows:

3 1. Any peace officer, or an officer, employee, contractor,
4 vendor, volunteer, or agent of the department of corrections,
5 or an officer, employee, or agent of a judicial district
6 department of correctional services, who engages in a sex
7 act with an individual committed to the custody of the
8 department of corrections or a judicial district department of
9 correctional services commits ~~an aggravated misdemeanor~~ a class
10 "D" felony.

11 3. Any peace officer, or an officer, employee, contractor,
12 vendor, volunteer, or agent of a county who engages in a sex
13 act with a prisoner incarcerated in a county jail commits ~~an~~
14 ~~aggravated misdemeanor~~ a class "D" felony.

15 Sec. 2. Section 709.16, subsection 2, paragraph a, Code
16 2026, is amended to read as follows:

17 a. Any peace officer, or an officer, employee, contractor,
18 vendor, volunteer, or agent of a juvenile placement facility
19 who engages in a sex act with a juvenile placed at such
20 facility commits ~~an aggravated misdemeanor~~ a class "D" felony.

21 EXPLANATION

22 The inclusion of this explanation does not constitute agreement with
23 the explanation's substance by the members of the general assembly.

24 This bill relates to sexual misconduct with offenders and
25 juveniles.

26 The bill increases the penalty from an aggravated
27 misdemeanor to a class "D" felony for any peace officer, or
28 an officer, employee, contractor, vendor, volunteer, or an
29 agent of the department of corrections or a judicial district
30 department of correctional services or an agent of a county, or
31 an agent of a juvenile placement facility or county jail, who
32 engages in a sex act with a person committed to the custody of
33 the department of corrections or a judicial district department
34 of correctional services, with a juvenile placed at a juvenile
35 placement facility, or with a prisoner incarcerated in a county

S.F. _____ H.F. _____

1 jail. A class "D" felony is punishable by confinement for no
2 more than five years and a fine of at least \$1,025 but not more
3 than \$10,245.